



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1275: diversion program; military members; veterans

BLACKMAN FLOOR AMENDMENT

1. Removes *prosecuting* and *adjudicating* from the purposes for which a county attorney may establish a Veterans Diversion Program (Program).
2. Removes the requirement for a defendant to have a mental health condition related to their military service to be able to participate in the Program.
3. Clarifies that the act does not preclude the ability of another prosecuting agency to divert or defer the prosecution of an offender.
4. Removes language outlining that the Program criteria and guidelines must be developed with and agreed on by the presiding judge and prosecutor.
5. Clarifies that a defendant who is *charged with*, rather than *convicted of*, any of the outlined offenses is ineligible to participate in the Program.
6. Removes language stating that a defendant who is charged with a domestic violence offense is ineligible for participation in the Program.
7. Makes a technical change that corrects an internal reference.
8. Amends the definition of *veteran*.

BLACKMAN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1275

I move the following SUBSTITUTE amendment to the FEDERALISM, MILITARY AFFAIRS & ELECTIONS
Committee Amendment to
SENATE BILL 1275 (Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 11, chapter 2, article 11, Arizona Revised
3 Statutes, is amended by adding section 11-366, to read:

4 11-366. Veterans diversion program; definitions

5 A. A COUNTY ATTORNEY MAY ESTABLISH A VETERANS DIVERSION PROGRAM FOR
6 THE PURPOSE OF [PROSECUTING, ADJUDICATING AND] TREATING A DEFENDANT WHO
7 [HAS A MENTAL HEALTH CONDITION RELATED TO THE DEFENDANT'S MILITARY SERVICE
8 IF THE DEFENDANT] IS A MILITARY MEMBER OR VETERAN.

9 B. THE COUNTY ATTORNEY HAS SOLE DISCRETION TO DECIDE WHETHER TO
10 DIVERT, BEFORE A GUILTY PLEA OR A TRIAL, THE PROSECUTION OF AN OFFENDER,
11 EXCEPT THAT THE VETERANS DIVERSION PROGRAM MAY BE STRUCTURED TO REQUIRE AN
12 OFFENDER TO PLEAD GUILTY BEFORE ENTRY INTO THE VETERANS DIVERSION PROGRAM.
13 THE VETERANS DIVERSION PROGRAM MAY PROVIDE FOR THE DISMISSAL OF A CRIMINAL
14 COMPLAINT ON SUCCESSFUL COMPLETION OF THE VETERANS DIVERSION PROGRAM.
15 [THIS SECTION DOES NOT PRECLUDE THE ABILITY OF ANOTHER PROSECUTING AGENCY
16 TO DIVERT OR DEFER THE PROSECUTION OF AN OFFENDER AS OTHERWISE PROVIDED BY
17 LAW.]

18 [C. EXCEPT AS OTHERWISE PROVIDED IN TITLE 13, THE COUNTY ATTORNEY
19 MAY DIVERT THE PROSECUTION OF A DEFENDANT WHO IS A VETERAN IF THE
20 DEFENDANT MEETS THE CRITERIA AND GUIDELINES FOR ENTRY INTO THE VETERANS
21 DIVERSION PROGRAM THAT ARE DEVELOPED AND AGREED ON BY THE PRESIDING JUDGE
22 AND THE PROSECUTOR.]

23 [D.] [C.] A DEFENDANT WHO IS [CONVICTED OF] [CHARGED WITH] ANY OF
24 THE FOLLOWING OFFENSES IS NOT ELIGIBLE TO PARTICIPATE IN THE VETERANS
25 DIVERSION PROGRAM:

1 1. AN OFFENSE INVOLVING THE DEATH OF OR SERIOUS PHYSICAL INJURY TO
2 ANOTHER PERSON.

3 2. ~~[A DOMESTIC VIOLENCE OFFENSE AS DEFINED IN SECTION 13-3601 OR] A~~
4 VIOLATION OF ~~[TITLE 13.]~~ CHAPTER 14 OR 35.1 ~~[OF THIS TITLE].~~

5 3. AN OFFENSE IN WHICH THE DEFENDANT ENGAGES IN A CONTINUING
6 CRIMINAL ENTERPRISE.

7 ~~[E.]~~ [D.] FOR THE PURPOSES OF THIS SECTION:

8 1. "MILITARY MEMBER" MEANS AN INDIVIDUAL WHO SERVES IN THE
9 UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR, RESERVE
10 AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR FORCE,
11 SPACE FORCE, MARINE CORPS AND COAST GUARD.

12 2. "VETERAN" MEANS AN INDIVIDUAL WHO HAS SERVED IN AND WHO HAS BEEN
13 DISCHARGED, SEPARATED OR RELEASED FROM ACTIVE OR INACTIVE SERVICE IN THE
14 UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR, RESERVE
15 AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR FORCE,
16 SPACE FORCE, MARINE CORPS AND COAST GUARD~~[, UNDER EITHER:~~

17 ~~(a) HONORABLE CONDITIONS.~~

18 ~~(b) DISHONORABLE CONDITIONS IF THE PERSON HAS BEEN DIAGNOSED WITH A~~
19 ~~MENTAL HEALTH CONDITION, INCLUDING:~~

20 ~~(i) A SUBSTANCE USE DISORDER.~~

21 ~~(ii) MILITARY SEXUAL TRAUMA.~~

22 ~~(iii) A TRAUMATIC BRAIN INJURY.~~

23 ~~(iv) POST-TRAUMATIC STRESS DISORDER].~~

24 Enroll and engross to conform

25 Amend title to conform

WALT BLACKMAN

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